



POLICE DEPARTMENT CITY OF NEW YORK

May 11, 2017

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Andrew Nguyen  
Tax Registry No. 946057  
Transit Bureau District 12  
Disciplinary Case No. 2015-14828

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**Charges and Specifications:**

1. Said Police Officer Andrew Nguyen, on or about June 25, 2015, at approximately 1610 hours, while assigned to Transit Bureau District 12 and on duty, in the vicinity of 3<sup>rd</sup> Avenue and 149<sup>th</sup> Street, inside of the 2/5 subway station, Bronx County, did wrongfully use force against an unknown individual in that he pushed said unknown individual.  
P.G. 203-11 – USE OF FORCE
2. Said Police Officer Andrew Nguyen, on or about June 25, 2015, at approximately 1610 hours, while assigned to Transit Bureau District 12 and on duty, in the vicinity of 3<sup>rd</sup> Avenue and 149<sup>th</sup> Street, inside of the 2/5 subway station, Bronx County, did wrongfully use force against an unknown individual in that he struck said unknown individual in the face with an open hand.  
P.G. 203-11 – USE OF FORCE

**Appearances:**

For CCRB-APU: Amanda Gayle, Esq.  
Civilian Complaint Review Board  
100 Church Street, 10<sup>th</sup> floor  
New York, NY 10007

For the Respondent: John Tynan, Esq.  
Worth, Longworth & London, LLP  
111 John Street-Suite 640  
New York, NY 10038

**Hearing Dates:**

January 12 and March 9, 2017

**Decision:**

Specification No. 1: Not Guilty  
Specification No. 2: Guilty

**Trial Commissioner:**  
ADCT Robert W. Vinal

## **REPORT AND RECOMMENDATION**

The above-named member of the Department appeared before me on January 12 and March 9, 2017. Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The CCRB Administrative Prosecutor called Dr. Raymond Morales as a witness. Respondent called Police Officers Scott Liebensohn and William Teti as witnesses and testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

## **DECISION**

After reviewing the evidence presented at the hearing, and assessing the credibility of the witnesses, Respondent is found Not Guilty of Specification No. 1, but Respondent is found Guilty of Specification No. 2.

## **FINDINGS AND ANALYSIS**

It is uncontested that on June 25, 2015, at about 1610 hours, Respondent was on duty, in uniform, assigned to Transit Bureau District 12, assigned to a fixed post inside the subway station on Third Avenue and 149 Street, the Bronx. (Hereinafter: "the subway station").

Dr. Raymond Morales, a practicing pediatrician who was raised in the Bronx but now resides in California, testified that on June 25, 2015, he was visiting relatives in the Bronx and decided to take a subway ride. He entered the subway station at about 1610 hours and paid the fare. As he was walking down stairs leading to the southbound train platform, he saw a young male whose age he estimated as being between ten and 14 years old and who appeared to be about five feet four inches tall (Hereinafter: "the youth"). Morales saw the youth enter onto the train platform area by pushing open and walking through the emergency door which then closed behind him. Morales heard a young woman verbally protest that the youth had not paid the fare.

Morales observed two uniformed police officers walk over to where the youth was standing, which was about one foot in front of the closed emergency door. Morales identified Respondent in the Trial Room as being one of the officers. Morales walked closer to where the officers and the youth were standing. Morales stopped when he was about 15 to 20 feet away from them. He saw Respondent use his left hand to grab the youth's right shoulder. Respondent then opened the emergency door and, while holding the youth's shirt collar, pushed the youth back through the emergency door. The youth protested. Morales described the youth as "brash," "demonstrative," and "out of control." Morales heard the youth tell Respondent, "Fuck you."

No more than five seconds later, Morales saw Respondent slap the youth once in the face with an open hand. He heard the sharp sound of Respondent's hand making contact with the youth's face because the sound was audible. Morales recalled that people who were standing on the platform waiting for the train to arrive were watching the encounter. Some of these people began to protest Respondent's slap by making comments such as, "Why did you do that?" The youth, whose cheeks were now red, started crying and told Respondent, "Fuck you sir." Respondent released the youth and Morales did not see him again. Both officers came back through the door onto the platform and "tried to calm the crowd down." As the officers passed by Morales, he looked at the name tag and shield number on Respondent's uniform and memorized them. Two days later, he accessed CCRB's website and made an online report regarding what he had seen.

On cross-examination, Morales testified that he got on the next train that pulled into the station and that he did not attempt to examine the youth to see if he had suffered an injury because he was certain that the open-handed slap had caused no injury. Morales, who described his hobby as being a "videographer," confirmed that he supported Black Lives Matter; that he

had attended and videotaped two Black Lives Matter rallies that were held in Oakland, California; and that he shows these videos on the "TV and internet show" he has created entitled "Latino Perspective."

Morales explained that even though he had his cell phone with him on June 25, 2015, he did not use his cell phone to record this incident because the screen is cracked. Morales also explained that even though he is a physician, he did not attempt to examine the youth's face because he had assessed his physical condition from about 15 feet away and he did not appear to be in physical distress, only emotional distress. Morales was confronted with a statement he made during his CCRB interview that, "I wish I could say that's the first time I've seen an officer do something egregious to a young black or brown scholar." Morales explained that in using the terms "black" and "brown" he was referring to people of color and that he regularly uses the term "scholar" when he is referring to children he visits in the hospital. Morales denied that he has an anti-police bias because he has family members who are police officers and friends who are police officers. Morales described and demonstrated how Respondent had grabbed the youth by the shirt covering his shoulder and pushed him backwards through the emergency door gate into the token booth area.

Respondent testified that his partners, Police Officers Scott Liebensohn and William Teti, were with him inside the subway station on Third Avenue and 149 Street, the Bronx. At about 1610 hours, Respondent was standing on the southbound train platform when he observed the youth walk through the emergency exit gate onto the southbound platform. The youth stopped just inside the gate and stood still. Respondent approached the youth and asked him how old he was and why he had not paid the fare. The youth replied that he was 15-years-old and that he did not have to pay the fare.

Respondent testified that when he “placed my hand on him to guide him back out through the door,” the youth “refused by slapping my hand off his shoulder.” Respondent testified that he told the youth, “Don’t do that again,” and then “grabbed him by the shoulder again and guided him out” through the emergency gate into the token booth area. A woman, who someone stated was the youth’s sister, told Respondent that he “couldn’t do that to him because he is a minor.” Respondent testified that he told the sister, “He has to leave because he tried to hop the train.”

Respondent was alone at this point because his partner Officer William Teti was in the bathroom and his other partner, Officer Scott Liebenson, was helping a customer in the turnstile area. Respondent recalled that “a crowd emerged” and people in this crowd asserted that Respondent’s action of ejecting the youth was not fair and that he could not “kick” the youth out because he is underage. Respondent told the crowd, “I can kick him out. It’s our job.” The youth then began “shouting” at Respondent, “Fuck you! Suck my dick! You’re a pussy!” Liebenson came over “to try to calm the situation down.” Liebenson spoke to the youth’s sister and a friend of the youth. The sister and the friend then walked the youth out of the station.

On cross-examination, Respondent confirmed that the youth was Hispanic and that he told Respondent that he was not carrying any identification. Respondent agreed that he had grabbed the youth’s shirt on his shoulder area to guide him back out through the emergency door. Respondent was reminded that at his CCRB interview he had stated that he had placed his hand on the youth’s chest because “it was just right there in front of me.” Respondent stated that the youth pushed him and then pushed him again and that the second push had caused him to take a few steps backwards. Respondent confirmed that as he was escorting the youth through

the emergency door into the token booth area, the youth stopped walking and that he had to push the youth a bit and grab him by his arm to keep him walking.

The youth then told him, "Don't fucking touch me," and the woman who identified herself as his sister told Respondent, "Get the fuck off my brother." Respondent confirmed that a crowd began to form and the youth started crying and began yelling and screaming at Respondent. Respondent was reminded that at his CCRB interview he had stated that he "saw tears coming out of" the youth's "eyes." Liebensohn then came over. Respondent confirmed that Liebensohn did not know what had happened. In the Activity Log entry he made regarding this incident, he wrote that he had "physically removed" a "15-year-old" from the subway station because he had refused to leave the station. Respondent testified that he did not write the youth's name in his entry because the youth had refused to provide his name.

### **Analysis**

#### **Specification No. 1**

It is charged that Respondent wrongfully used force against the youth in that he pushed him. The youth's action of entering the train platform area without having paid the fare by opening and walking through the emergency door constituted the crime of Theft of Services. Thus, Respondent had the right to take the youth into physical custody and to physically remove the youth from the platform he had unlawfully entered onto.

Morales basically corroborated Respondent's description of how he had removed the youth from the train platform. Morales described and demonstrated that Respondent had grabbed the youth by the shirt covering his shoulder and pushed him backwards through the emergency door gate into the token booth area. Based on Morales' description, the CCRB Administrative Prosecutor did not meet her burden of proving that Respondent wrongfully used force against the

youth by pushing him. It is clear that Respondent did not believe that he had wrongfully used force because he did not attempt to cover-up the fact that he placed his hands on the youth. In the Activity Log entry he made regarding this incident, he wrote that he had “physically removed” a “15-year-old” from the subway station.

In *Case No. 2015-13213* (July 19, 2016), a lieutenant was charged with using force against an individual without police necessity by pushing him four separate times in an effort to remove him from the scene of an arrest. Although the Trial Commissioner found that the lieutenant’s first three pushes did not constitute misconduct because they were performed for a legitimate and necessary police purpose, the Trial Commissioner found that the lieutenant’s final push was unnecessary because by that point the individual had started to walk away. The Police Commissioner disapproved the Trial Commissioner’s guilty finding regarding the final push.

Consistent with the reasoning in that decision, I find that Respondent’s action of pushing the youth backwards through the emergency door gate into the token booth area does not constitute actionable misconduct. Therefore, Respondent is found Not Guilty of Specification No. 1.

#### Specification No. 2

It is charged that Respondent wrongfully used force against the youth in that he struck him in the face with an open hand. Although Respondent denied that he had slapped the youth in the face, Morales testified that he saw Respondent slap the youth once in the face with an open hand and that he could clearly hear the sharp sound of Respondent’s hand making contact with the youth’s face.

Respondent’s attorney argued that Morales’ claim should not be credited because his support for Black Lives Matter and the statement he made during his CCRB interview that this

was not the first time that he had seen a police officer “do this to a brown scholar,” reflected an anti-police bias. However, I credit Morales’ claim that he does not have an anti-police bias because he has family members and friends who are police officers. Also, Morales’ candid testimony that he personally saw the youth illegally enter onto the train platform by going through the emergency door; his description of the youth as “brash,” “demonstrative,” and “out of control;” his testimony that he heard the youth tell Respondent, “Fuck you;” and the fact that he alleged only a single slap; all serve to lend credence to his claim.

Moreover, Respondent corroborated Morales’ testimony that the youth started crying. Respondent offered no explanation as to why a youth who had been so combative that he had physically resisted being removed from the platform; had cursed at Respondent; and, according to Respondent, had slapped Respondent’s hand away; would, only seconds later, suddenly start crying. Thus, the record is devoid of any reason why the youth started crying other than that he had just been slapped in the face. Therefore, Respondent is found Guilty of Specification No. 2.

### PENALTY RECOMMENDATION

In order to determine an appropriate penalty, Respondent’s service record was examined. *See Matter of Pell v. Board of Education*, 34 N.Y.2d 222 (1974). Respondent was appointed to the Department on January 7, 2008. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum. Respondent has no prior formal disciplinary adjudications.

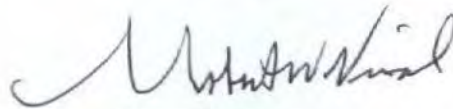
The CCRB Administrative Prosecutor recommended that Respondent forfeit 20 vacation days as a penalty for wrongfully using force against the youth by pushing him and by slapping his face. However, Respondent has only been found guilty of having unnecessarily slapped the youth once on his face. In *Case No. 2013-9972* (March 27, 2015), a 23-year officer who had one prior disciplinary adjudication forfeited five vacation days as a penalty after he was found



guilty at trial of having unnecessarily slapped a suspect he was arresting. More recently, in *Case No. 2015-13885* (Oct. 14, 2016), a six-year officer who had no prior disciplinary adjudications forfeited five vacation days as a penalty after he was found guilty at trial of having wrongfully used force by slapping an individual on the back of his head without police necessity.

Therefore, I recommend that Respondent forfeit five vacation days as a penalty.

Respectfully submitted,



Robert W. Vinal  
Assistant Deputy Commissioner Trials

**APPROVED**

OCT 06 2017



JAMES P. O'NEILL  
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner - Trials  
To: Police Commissioner  
Subject: CONFIDENTIAL MEMORANDUM  
POLICE OFFICER ANDREW NGUYEN  
TAX REGISTRY NO. 946057  
DISCIPLINARY CASE NO. 2015-14828

Respondent received an overall rating of 3.5 on his 2015 annual performance evaluation, 4.0 on his 2014 annual evaluation, and 3.5 on his 2013 annual evaluation. He has been awarded one Meritorious Police Duty medal and three Excellent Police Duty medals. [REDACTED]

[REDACTED] He has no prior formal disciplinary adjudications and no Monitoring records.

For your consideration.

Robert W. Vinal  
Assistant Deputy Commissioner Trials